No. 22-_____

IN THE

Supreme Court of Georgia

DEMOCRATIC PARTY OF GEORGIA, INC., DSCC, and WARNOCK FOR GEORGIA,	)	
Plaintiffs-Appellees,	)	CASE NO. A230012
v.	)	
THE STATE OF GEORGIA,	)	
Defendant-Appellant.	)	

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EMERGENCY PETITION FOR WRIT OF CERTIORARI AND EMERGENCY MOTION TO STAY THE SUPERIOR COURT'S DECLARATORY AND INJUNCTIVE RELIEF

by

INTERVENORS GEORGIA REPUBLICAN PARTY, INC., NATIONAL REPUBLICAN SENATORIAL COMMITTEE, AND REPUBLICAN NATIONAL COMMITTEE

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Introduction

Intervenors Georgia Republican Party, Inc., National Republican Senatorial Committee ("NRSC"), and Republican National Committee ("RNC") (collectively, "Intervenors") petition this Court to issue a writ of certiorari to review the court of appeals' order denying Intervenors' motion for stay, *see id.* R. 40. In addition, Intervenors move for an emergency stay of the superior court's order pending disposition of this petition. Intervenors are proceeding with all possible speed to resolve this time-sensitive appeal **before illegal advance voting this Saturday moots this petition**.

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On the eve of counties noticing advance voting dates for the Georgia U.S. Senate runoff election, a Fulton County superior court judge overruled the State of Georgia's non-partisan reading of O.C.G.A. § 21-2-385(d)(1) and accompanying guidance in Georgia's November 12, 2022 Official Election Bulletin (the "Bulletin"). The court's contorted textual interpretation permits advance voting on Saturday, November 26. The order ensures a lack of uniformity among Georgia's 159 counties, with only a handful (*i.e.*, Fulton, DeKalb, Cobb, Chatham, Muscogee, Clarke, Clayton, Gwinnett, Newton, and Rockdale) noticing their intent to hold advance voting on November 26.[1] The injunction *permitting* rather than *mandating*

[1] *See December 6 Runoff Advance Polling Location Schedule*, Ga. Sec. of State (Nov. 19, 2022), https://perma.cc/DV44-2TN8. These ten counties accounted for more than *half* of Senator Warnock's total vote count during the general

counties to open advance voting locations on November 26 cannot be reconciled with the text of O.C.G.A. § 21-2-385(d)(1), which specifies Saturday dates that "shall" have advance voting.

This Court recognizes an "underlying policy" that courts should be wary of the timing of court orders in election-related cases. *Jordan v. Cook*, 277 Ga. 155, 156 (2003). That policy reflects "a bedrock tenet of election law: When an election is close at hand, the rules of the road must be clear and settled." *Merrill v. Milligan*, 142 S.Ct. 879, 880–81 (2022) (Kavanaugh, J., concurring in grant of applications for stays). For that reason, the U.S. Supreme Court "has often stayed lower federal court injunctions that contravened that principle." *Id.* at 880 (collecting cases). This Court should do the same with the superior court's injunction.

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Intervenors now apply to this Court to resolve this matter. The superior court entered its order late last Friday afternoon. On Monday morning, Intervenors filed an Emergency Motion for Stay in the court of appeals under Ga. Ct. App. R. 40(b). The court of appeals denied the motion, without elaboration, around the close of business Monday and failed to enter a briefing schedule. Intervenors ask this Court to issue a writ of certiorari to review the court of appeals' denial of the motion for

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election. *See November 8, 2022 General/Special Election*, Ga. Sec. of State (Nov. 19, 2022), https://perma.cc/8EXY-635L. And not a single one of them is Republican-leaning. *See December 6 Runoff Advance Polling Location Schedule*, Ga. Sec. of State (Nov. 19, 2022), https://perma.cc/DV44-2TN8

emergency stay and request that this Court stay the superior court's order granting declaratory and injunctive relief pending disposition of this petition. Final resolution of this legal issue is a matter of "great concern, gravity, or importance to the public" regarding the rules that will govern this and future runoff elections in Georgia. Ga. S.Ct. R. 40.

Jurisdiction

This Court has jurisdiction over this petition pursuant to O.C.G.A. § 5-6-34(a)(1) (final judgments); *id.* (a)(4) ("orders … refusing applications … for interlocutory or final injunctions"); *id.* (a)(7) (applications refusing extraordinary remedies). This Court reviews both the judgment and "all … orders rendered in the case which are raised on appeal and which may affect the proceedings below … without regard to the appealability of the … order standing alone and without regard to whether the … order appealed from was final or was appealable by some other express provision of law." O.C.G.A. § 5-6-34(d).

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The superior court entered final judgment on November 18th. The court of appeals refused an application for interlocutory or final injunction on November 21st.[2] This petition is properly before this Court.

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[2] The district court's order granting Plaintiffs' request for declaratory injunctive relief was, in effect, an order "granting or refusing applications for receivers or for interlocutory or final injunctions" and thus a final judgment. *Id.* § 5-6-34(a)(4). Further, the Court of Appeals' order denying Intervenors' request for stay had the effect of extending the Plaintiffs' injunctive relief, and thus

Factual and Procedural Background

Georgia's December 6, 2022, runoff election is a "continuation" of the November 8th general election. O.C.G.A. § 21-2-501(a)(5). The runoff is overseen and administered by the Secretary of State ("Secretary"), Ga. Const. art. V, § III, ¶ I; O.C.G.A. § 21-2-50, and the State Election Board ("SEB"), O.C.G.A., § 21-2-31.

The General Assembly enacted a detailed framework that *mandates* advance voting on some days, *permits* it on other days, and *forbids* it on a few days. Advance voting "shall" begin "no later than the second Monday immediately prior to such runoff." O.C.G.A. § 21-2-385(d)(1)(B).[3] For this runoff, mandatory advance voting begins on Monday, November 28, and concludes Friday, December 2. *See id.*[4]

At issue here is the *prohibitory* language in § 21-2-385(d)(1). Advance voting "shall not be held" on the second Saturday before the election "if such second Saturday follows a public and legal holiday occurring on the Thursday or Friday immediately preceding such second Saturday." *Id.* This year's second Saturday

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falls under Section 5-6-34(a)(4) as well. *See Morgan v. U.S. Bank Nat'l Ass'n*, 322 Ga. App. 357, 359 (Ga. Ct. App. 2013).

[3] For the Court's convenience, O.C.G.A § 21-2-385(d)(1) is attached as **Exhibit A**.

[4] The statute allows counties to begin advance voting "[a]s soon as possible prior to a runoff …." O.C.G.A. § 21-2-385(d)(1)(B).

qualifies, as both Thanksgiving Day and a state holiday on Friday, November 25 "immediately preced[e]" the second Saturday.

In advance of those holidays, county officials and the Secretary are scrambling to complete multiple statutory requirements before conducting advance voting, including voting machine testing, O.C.G.A. §§ 21-2-374(b), 379.6(c), precertification tabulation audits, *id.* § 21-2-498, and certification of the general election, *id.* § 21-2-499. Those requirements were ongoing at the time the superior court entered its order. *See, e.g.,* **Ex. B**, Compl., Ex. 1 Bulletin; *see* **Ex. C**, Intervenors' Opp. TRO at Exs. A-B (Dover Affidavit ¶ 7; *id.*, Natt Affidavit ¶ 7).

Notably, the law requires counties to provide "reasonable notice" to voters "no later than seven days" before advance voting begins regarding "times, dates, and locations." *See* § 21-2-385(d)(2)-(3). To help counties comply with the requirements, the Secretary circulated the Bulletin to county election officials on November 12, 2022. **Ex. B,** Compl. at Ex. 1. The Bulletin notified election officials that advance voting *must* be held November 28 through December 2 and that advance voting *may* begin before November 28, but "cannot occur" on public holidays or on Saturday, November 26 because "OCGA 21-2-385(d)(1) … states that if the second Saturday before the runoff follows a Thursday or Friday that is a state holiday, voting on that Saturday is not allowed." *Id.*

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Relying on the Secretary's direction, 159 counties prepared and staffed advance voting in the runoff. Despite unanimity among counties that advance voting *would not* occur on November 26, Plaintiffs asked the superior court to permit advance voting on that Saturday.[5] The court granted Plaintiffs' request on the afternoon before the counties had a statutory deadline to provide notice of advance voting on November 26 under O.C.G.A. § 21-2-385(d)(3). **Ex. E**, Order, dated November 18, 2022. Intervenors seek to uphold Georgia law and stop an uneven impact on Georgia's voters by this erroneous ruling. Intervenors request an expedited ruling on this time-sensitive petition and ask that the Court stay the superior court's order while this time-sensitive petition is considered.

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Enumeration of Errors

For purposes of Intervenors' request for a writ of certiorari, Intervenors provide the following enumeration of errors:

Under the plain meaning of Georgia's election laws, runoff elections are a continuation of the general election and advance voting is prohibited on the "second Saturday" before a runoff, when that Saturday "follows a public and legal holiday occurring on the Thursday or Friday immediately preceding." O.C.G.A. § 21-2-

[5] In advance of the TRO hearing, Plaintiffs informed the court that at least four Democratic-leaning counties were willing to hold advance voting on that Saturday (*i.e.*, Fulton, DeKalb, Cobb, and Muscogee) if the court granted an injunction. *See e.g.*, **Ex. D**, Sparks Aff. ¶¶ 4-7.

385(d)(1). Did the court of appeals err in refusing to stay the superior court's declaration that O.C.G.A. § 21-2-385(d)(1) permits voting on Saturday, November 26th, immediately after the Thanksgiving holiday on Thursday and the state holiday on Friday and injunction prohibiting the State from enforcing Georgia's election laws as written?

Legal Standard

This Court will grant a writ of certiorari "in cases of great concern, gravity, or importance to the public." *Id.* R. 40.

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Argument

Intervenors' request for certiorari turns on the court of appeals' failure to stay the superior court's contorted interpretation of O.C.G.A. § 21-2-385(d)(1), disrupting the relevant statute and, more broadly, the General Assembly's rules in place to help the State administer the runoff election. This case presents issues of "great concern, gravity, or importance to the public," which would justify granting a writ of certiorari. Time is of the essence; emergency relief should be granted before some (but not most) counties commence impermissible advance voting on November 26.

I. The court of appeals' Order denying the motion for an emergency stay was erroneous.

The court of appeals erroneously denied Intervenors' motion to stay the superior court's order misinterpreting O.C.G.A. § 21-2-385(d)(1). Emergency relief

from that order was and is necessary to protect Georgia's interest in enforcing its laws as written and to protect the majority of Georgia's citizens whose counties will not have voting access on November 26, given the short notice from the court's order. The Secretary's interpretation of O.C.G.A. § 21-2-385(d)(1) is correct on the merits, and the balance of harms and public interest strongly favor preserving Georgia election law. Because the interests of the Intervenors, the State, and the public "weigh strongly in favor of a stay … pending appeal," *Green Bull*, 301 Ga. at 473, Intervenors needed only to show a "substantial case on the merits," not a likelihood of prevailing, to the court of appeals. *Id.* But the court of appeals erred in denying interlocutory relief, allowing the superior court's misinterpretation of O.C.G.A. § 21-2-385(d)(1) to persist.

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The superior court's misinterpretation of O.C.G.A. § 21-2-385(d)(1) turns on its findings that (1) "primary or election" does not include the term runoff, (2) runoffs are not continuations of an election (contrary to Georgia law), and (3) the shortened time period prior to a runoff requires Saturday voting to allow counties to start advance voting "[a]s soon as possible." The key differences between its interpretation and the statutory text concern: (1) whether "primary or election" includes runoff elections; (2) the appropriate time period for advance voting; and (3) whether advance voting can be permissive, especially on Saturdays, when not expressly provided in the statute.

The superior court gave no deference to the Secretary, despite acknowledging an "absence of settled law on this specific issue." *Id.* at 4. This runs afoul of the principle "that courts should presume public officials … acted in accordance with their statutory duties and read the statute in a manner that renders their conduct proper." *See Gundy v. Balli*, 362 Ga. App. 304, 311 (2022); *see also Selph v. Williams*, 284 Ga. 349, 352 (2008) ("[A] presumption of regularity … requires the courts to presume that public officers have properly discharged their official duties"); *see also* O.C.G.A. § 21-2-50(b) (the Secretary is the "state's chief election official"). That interpretation was erroneous, and the court of appeals erred in acquiescing to it.

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a. The Secretary's interpretation of the statute is correct.

The Secretary's reading of O.C.G.A. § 21-2-385(d)(1) accords with principles of statutory construction: advance voting on Saturday, November 26, is not allowed because it follows Thanksgiving and another state holiday.

Statutory interpretation starts with the text, applying its "plain and ordinary meaning" when read in the "most natural and ordinary way, as an ordinary speaker of the English language would." *Deal v. Coleman*, 294 Ga. 170, 172–73 (2013). This includes applying the rules of grammar. *Id.* at 173. A statute should not be read in isolation, but rather "in the context of the other statutory provisions of which it is a part." *Hendry v. Hendry*, 292 Ga. 1, 3 (2012). Indeed, "[i]t is a basic rule of

construction that a statute … should be construed to make all its parts harmonize and to give a sensible and intelligent effect to each part[.]" *McIver v. State*, 314 Ga. 109, 119 (2022). Finally, statutes addressing the same subject matter are construed together. *Ultra Telecom, Inc. v. State*, 288 Ga. 65, 67 (2010).

Applying these principles, the Court must first look at the Election Code generally to determine if "primary or election" can encompass a runoff election. Georgia statute provides that "'[e]lection' ordinarily means any general or special election and shall not include a primary or special primary unless the context in which the term is used clearly requires that a primary or special primary is included." O.C.G.A. § 21-2-2(5). The definition's drafters expressly excluded primaries *but not runoffs*, which are a natural "continuation of the … election." *See* O.C.G.A. § 21-2-501(a)(5).

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The Georgia election code frequently uses "primary or election" to encompass runoff. *See, e.g.*, O.C.G.A. §§ 21-2-216 (voters must be registered to vote in "any primary or election"); -493 (superintendent shall commence canvassing "after the close of the polls on the day of a primary or election"); -403 (polls shall be open from 7:00 A.M. to 7:00 P.M. "at all primaries and elections[.]"); -300(a) (requiring that electronic voting equipment be used in "general primaries and general elections"); -385(a) (setting forth procedures for absentee ballots in a "primary or election"); -522 (allowing the "result of a primary or election" to be contested in

court). The term "primary or election" plainly applies to rules and regulations for subsequent runoffs unless expressly delineated otherwise.[6]

Case law supports the Secretary's conclusion that "election" includes a runoff election. Numerous Georgia Supreme Court decisions use the terms "election," "run-off election," and "runoff" interchangeably when discussing a single election. *See, e.g.*, *Fuller v. Thomas*, 284 Ga. 397 (2008) (referring to contested run-off election as "election," "runoff," and "runoff election"); *Spalding Cnty. Bd. of Elections v. McCord*, 287 Ga. 835 (2010) (same); *Meade v. Williamson*, 293 Ga. 142 (2013) (same). That usage informs the statutory meaning. *See Hasty v. Castleberry*, 293 Ga. 727, 731 (2013) (statutes are "construed in connection and in harmony with the existing law, and as a part of a general and uniform system of jurisprudence," "with reference to other statutes and the decisions of the courts").

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Having established that Georgia recognizes two types of elections (which encompass the runoff election), the Court must interpret the text and structure of Section 385(d)(1), which is one paragraph consisting of three sentences. The first sentence (the "Voting-Period Provision") sets the "*period*" of advance voting—*i.e.*, the temporal bookends when advance voting may occur—but it does not specify the

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[6] For instance, OCGA § 21-2-385(d)(1)(B) expressly delineates the advance voting dates for the runoff because the "primary or election" advance voting dates do not work for the shorter four-week turnaround between the general election and the runoff.

specific dates and times for voting within that period. The second sentence (the "Dates-and-Times Provision") provides more details by authorizing specific *dates* and *times* that advance voting must or may occur, *i.e.*, all weekdays during the period (except holidays) and particular Saturdays and Sundays.[7] Lastly, the third sentence (the "Authorizing Provision") makes clear that advance voting is only allowed on the specific dates and times expressly provided for in § 385(d)(1) and no others.

The Secretary reads O.C.G.A. § 21-2-385(d)(1) "as a whole, considering specific words and phrases not in isolation, but in relation to each other," *Gary v. State*, 338 Ga. App. 403, 405 (2016), and gives effect to each statutory provision. The Secretary's interpretation allows the statute to (a) define an advance voting period; (b) define times for weekday voting; (c) define mandatory Saturday voting, including the holiday exception; (d) define permissive Sunday voting; and (e) only allowing advance voting on certain express statutory dates. The superior court's adoption of Plaintiffs' interpretation, as described below, does not do the same.

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b. Plaintiffs' interpretation, adopted in the Order, is incorrect.

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[7] The block paragraph beginning "and shall end on the Friday…" is known as flush language. *See Sherwin-Williams Co. Emp. Health Plan Tr. v. Comm'r*, 330 F.3d 449, 454 (6th Cir. 2003). That flush language applies *both* to general elections (paragraph A) *and* to runoff elections (paragraph B) because it is set apart from the rest of the statute. "Provisions appearing in a statute's 'flush language,' or that language that appears flush against the margins in the code, generally apply to 'the entire statutory section or subsection.'" *Id.* (quoting *Snowa v. Comm'r*, 123 F.3d 190, 196 n.10 (4th Cir. 1997)).

The court of appeals failure to stay the superior court's order, which adopts the Plaintiffs' interpretation, turns the statute on its head. It (1) ignores that runoffs are defined as a continuation of the "primary or election"; (2) prevents most provisions in the statute from applying to runoffs; and (3) makes most advance voting dates for runoffs *permissive*, nullifying provisions that *mandate* or *prohibit* advance voting dates.

First, as discussed in Section I.a., the superior court failed to see that "primary or election" encompasses a runoff election because it is a "continuation" of the "primary or election," unless otherwise expressly stated.

Second, by construing "primary or election" to exclude runoffs, the superior court's interpretation renders all provisions in the second sentence of the statute inapplicable to runoffs. The term "primary or election" is used twice within the statute, but the order only considers the phrase within the context of the holiday exclusion provision. The court cannot cherry-pick to reach Plaintiffs' requested relief. *Zaldivar v. Prickett*, 297 Ga. 589, 592 (2015) ("identical words used in different parts of the same act are intended to have the same meaning" (quoting *Atl. Cleaners & Dyers, Inc. v. United States*, 286 U.S. 427, 433 (1932)). Consistently applying the term, "primary or election", to exclude "runoff" throughout the statute would eradicate most of O.C.G.A. § 21-2-385(d)(1)'s rules, including voting hours, mandatory Saturdays, permissible Sundays, *and the holiday exception provision* at

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issue here (*i.e.*, the statute's entire second sentence) for runoffs. Courts have a "duty to reject a construction of a statute" that "result[s] in unreasonable consequences or absurd results not contemplated by the legislature." *Haugen v. Henry Cnty.*, 277 Ga. 743, 746 (2004). The superior court defied that duty by ignoring the logical consequences of Plaintiffs' interpretation.

Notably, the order does not address the far-reaching consequences Plaintiffs' interpretation immediately causes for the runoff. For instance, counties could open advance voting for only half-an-hour on Monday, November 28, and half-an-hour on Friday, December 2. Or they could remain open 24-hours a day, including weekends and holidays, through Friday, December 2. The superior court order also strikes the counties' seven-day notice provision for advance voting, *see* O.C.G.A. § 21-2-385(d)(3), which could result in counties not providing proper advance notice of when advance voting locations are to be open. More broadly, the interpretation could affect counties' interpretations of the election code as a whole, which uses "primary or election" to encompass runoff elections throughout.

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Third, the superior court's interpretation negates specific mandates and prohibitions by treating all advance voting days but Monday, November 28, and Friday, December 2, as *permissive*. The superior court order advances November 26 as a permissive advance voting date because counties can start voting as "early as possible." However, O.C.G.A. § 21-2-385(d)(1) has mandatory, not permissive,

language for Saturday advance voting: it "***shall*** be conducted on the second and third Saturdays during the hours of 9:00 A.M. through 5:00 P.M." (emphasis added). Likewise, the next sentence (*i.e.*, the third sentence) specifies "that voting shall occur only on the days specified in this paragraph and counties and municipalities shall not be authorized to conduct advance voting on any other days." O.C.G.A. § 21-2-385(d)(1). The adopted interpretation cannot be reconciled with these mandates and prohibitions.

Fourth, the superior court's historical analysis of O.C.G.A. § 21-2-385(d)(1) is flawed. The superior court ignores the Secretary's Office's previous (and consistent) guidance for a July 13, 2021, five-county state runoff, the only post-statutory-revision runoff election that included a Saturday following a state holiday. *See* **Ex. F**, State's Opp. TRO, Ex. 1. It ignores that the legislature added the third sentence in 2021 requiring that advance voting can only occur where the legislature has *specified each early voting date*. O.C.G.A. § 21-2-385. And it ignores that the legislature removed "runoff" in 2017 as part of an attempt to uniformly apply "primary or election" across the election code. *See* **Ex. C**, Pl's Affidavit, Ex. 7. Otherwise, many key election statutes (such as O.C.G.A. § 21-2-216, 300(a), 403, etc.) that do not expressly say *runoff* would not apply.

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Even if "primary or election", as used in O.C.G.A. § 21-2-385(d)(1), were not to include runoff elections, the court's interpretation fails because "primary or

election" only modifies a small part of the statute. The holiday prohibition states, "if such second Saturday follows a public and legal holiday occurring on the Thursday or Friday immediately preceding such second Saturday, ... such advance voting shall not be held on such second Saturday but shall be held on the third Saturday prior to such primary or election ...." O.C.G.A. § 21-2-385(d)(1). Plaintiffs argued that this portion of the sentence means (1) if the conditional clause is satisfied (the second Saturday follows a Thursday or Friday legal holiday), then (2) advance voting is prohibited on the second Saturday *before primaries and general elections but not runoffs*.

The better reading is that (1) if the second Saturday follows a Thursday or Friday legal holiday, then (2) advance voting is prohibited on that Saturday *for all elections*, primaries, general elections, and runoffs, (3) but advance voting instead "shall be held on the third Saturday prior to such primary or election" (which excludes runoffs). This interpretation follows from the way "but," separates the two clauses. "Primary or election" at the end of the second clause should not be read to modify the first clause, *i.e.*, all words before "but." *See Thomas v. MacNeill*, 200 Ga. 418, 423–24 (1946) (*but*-clause separated by comma modifies previous clause). The second-Saturday holiday prohibition applies to *all* elections, including runoffs, and only the third-Saturday guarantee of advance voting is restricted to primaries and general elections.

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This interpretation makes practical sense. The legislature did not want to open voting, burdening county election workers, on the second Saturday if it fell immediately after a holiday. For primaries or elections, the third Saturday must be open for advance voting. Because the compressed runoff schedule may render advance voting on third Saturdays impossible before runoffs, the Assembly limited that third-Saturday guarantee to only "primary or [general] election[s]," not runoffs. Otherwise, this provision would *mandate* third-Saturday voting in runoffs—a logistical nightmare or practical impossibility.

c. The Intervenors' and State's interests favored a stay by the court of appeals.

The court of appeals failure to stay the superior court's order undermines the State's and the Intervenors' interests in an efficient, fair, and free election as well as the State's interest in applying its election laws uniformly. Instead, it elevates Plaintiffs' interests in obtaining potential electoral advantage over Intervenors' interest in electoral fairness. *See Green Bull*, 301 Ga. at 473. This Court's grant of interlocutory relief would meet "[t]he purpose for granting [an] interlocutory injunction"—*preserving*, not altering the status quo. *See Benton v. Patel*, 257 Ga. 669, 672 (Ga. 1987). The status quo was no advance voting on November 26. The legislature, not the superior court, is charged with striking the balance of fairness in Georgia elections.

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The State of Georgia, through the Secretary, *see, e.g.*, Ga. Const. art. V, § III, ¶ I; O.C.G.A. § 21-2-50, and the SEB, *see* O.C.G.A., § 21-2-31, "indisputably has a compelling interest in preserving the integrity of its election process." *Eu v. San Francisco Democratic Cent. Comm.*, 489 U.S. 214, 231 (1989). Georgia's interests in "conducting an efficient election, maintaining order, quickly certifying election results, and preventing voter fraud" are "strong" and "important." *New Ga. Project v. Raffensperger*, 976 F.3d 1278, 1282 (11th Cir. 2020). States must "substantial[ly] regulat[e] … elections if they are to be fair and honest and if some sort of order, rather than chaos, is to accompany the democratic processes." *Storer v. Brown*, 415 U.S. 724, 730 (1974). The U.S. Supreme Court has repeatedly emphasized that courts "should ordinarily not alter the election rules on the eve of an election." *Republican Nat'l Comm. v. Democratic Nat'l Comm.*, 140 S.Ct. 1205, 1207 (2020) (citing *Purcell v. Gonzalez*, 549 U.S. 1 (2006)); *see also New Ga. Project*, 976 F.3d at 1283.

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The Bulletin provided uniform guidance to counties across the state in advance of the runoff. County election officials have been relying on that guidance as they plan for the runoff election. *See* **Ex. C**, Intervenors' Opp. TRO, Exs. A-B (Dover Affidavit ¶ 8; Natt Affidavit ¶ 8). Officials have recruited poll workers and planned dates for logic and accuracy testing of voting machines, delivery of machines, and other preparations under the assumption that the polling locations

would not be open on November 26. *Id.* (Dover Affidavit ¶¶ 7-8, 11-13; Natt Affidavit ¶¶ 7-8, 11-13).

The court of appeals refused to stay the superior court's order, which will create chaos in the runoff election. Only ten counties—*all of them Democrat-leaning*—currently plan to conduct advance voting on November 26, eviscerating the statutorily-required uniformity among Georgia's counties on that day. It renders meaningless most advance voting rules for this runoff election and the election code generally. Counties are free to operate in a state of near-anarchy; the Secretary and SEB lack clear rules to oversee and administer the runoff election. Democracy suffers when election rules are unclear. *See Merrill*, 142 S. Ct. at 880–81 (it is a "bedrock tenet of election law" that "[w]hen an election is close at hand, the rules of the road must be clear and settled" to avoid "unfair consequences for candidates, political parties, and voters") (Kavanaugh, J., concurring); *Purcell*, 549 U.S. at 4–5 (judicial interference with elections "result[s] in voter confusion and consequent incentive to remain away from the polls," and "[a]s an election draws closer, that risk will increase").

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Georgia has an interest in its election laws being applied as written. A judicially mandated, last-minute change to the election laws passed by elected representatives and signed by an elected Governor undermines credibility and faith in the democratic process. In *New Georgia Project*, the Eleventh Circuit held

Georgia would suffer irreparable harm if a court barred "the State from conducting ... elections pursuant to a statute enacted by the Legislature unless the statute is unconstitutional." 976 F.3d at 1283 (internal quotation omitted). Likewise, the judicial tinkering with election laws here is not constitutionally required and constitutes irreparable harm.

The court of appeals' refusal to stay the superior court's injunction undermines the political parties' legitimate interests: ensuring that Senatorial candidates enjoy a fair election according to state election laws and the United States Constitution. *See, e.g.*, *N.C. State Conf. of NAACP v. McCrory*, 997 F.Supp.2d 322, 342 (M.D.N.C. 2014) (parties have "direct, particularized interest in the outcome of an election"), *aff'd in part sub nom. League of Women Voters of N.C. v. N.C.*, 769 F.3d 224 (4th Cir. 2014); *New Ga. Project v. Raffensperger*, 1:21-CV-01229-JPB, 2021 WL 2450647, at *2 (N.D. Ga. June 4, 2021). The superior court's order subverts that fair electoral environment for *all* Georgians.

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d. A stay will not cause Plaintiffs any irreparable harm.

Plaintiffs cannot point to any harm that they will suffer by this Court overturning the court of appeals' denial of the emergency motion to stay or the superior court's order being stayed pending review of this appeal. On the merits, it is unclear what, if any, harm Plaintiffs may suffer without advance voting in select partisan counties on November 26. *See Green Bull*, 301 Ga. at 473. By their

admission, Plaintiffs are "dedicated to electing candidates of the Democratic Party to public office[.]". **Ex. B**, Compl., ¶¶ 8-10. Yet Plaintiffs have baselessly grounded their arguments about irreparable harm in the fundamental right to vote, an interest that belongs to *all voters*. *See, e.g.*, *Obama for Am. v. Husted*, 697 F.3d 423, 436 (6th Cir. 2012). Any harm caused by the Secretary's guidance would be to some hypothetical voter who could *only* vote in the runoff election in-person on November 26, not by absentee ballot,[8] in-person on another advance voting day, or in-person on the day of the runoff. Plaintiffs are not the appropriate party to claim such harm.

Plaintiffs assert that losing one day of advance voting impedes their efforts to increase turnout. As support, they cite *Georgia Coalition for the People's Agenda v. Kemp*, 347 F.Supp.3d 1251, 1268 (N.D. Ga. 2018). But that case concerned a specific class of voters—individuals flagged by Georgia as ineligible to vote because of voter-registration errors. *Id.* at 1255. The Secretary's guidance does not affect a specific class of voters.[9] It affects all voters equally and is not a legally recognized harm. *See Gwinnett Cnty. NAACP v. Gwinnett Cnty. Bd. of Registration & Elections*, 446 F.Supp.3d 1111, 1126 (N.D. Ga. 2020) (no irreparable harm when voting

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[8] Georgia law allows any registered voter to request an absentee ballot and vote by mail. O.C.G.A. § 21-2-385(a).

[9] If *voters able to vote only via advance voting on November 26* were a legally protected class, a class could be created for every day of the calendar year, with no limit.

regulation "applies equally to all ... voters" without "indication that th[e] decision was used as a proxy for voter suppression or targeted a protected class"). Nor do Plaintiffs allege that any voters will be "entirely unable to vote" if a single day—November 26—remains unavailable for advance voting. *See id.*

Intervenors can only presume that Plaintiffs sought relief because they believe it will benefit Senator Warnock's reelection campaign. Keeping the status quo here would enable a political ruse: Plaintiffs knew (and represented) that Fulton, DeKalb, Cobb, and Muscogee were willing to open on November 26 if the requested relief was granted. *See* **Ex. D**, Pl.'s Affidavit at ¶ ¶ 4-7. A stay would not cause Plaintiffs any form of irreparable harm.

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e. The court of appeals should have stayed the superior court's order to serve the public interest.

The order from the court of appeals was erroneous because the order in the superior court "disserve[] the public interest" and should not have been granted. *Green Bull*, 301 Ga. at 473. The public shares the State's interest in fair, orderly, and predictable elections. Of Georgia's 159 counties, only Fulton, DeKalb, Cobb, Chatham, Muscogee, Clarke, Clayton, Gwinnett, Newton, and Rockdale are prepared to open polls on November 26. Consistent with evidence the Intervenors put before the court, the other 149 counties apparently could not reverse course from the Secretary's guidance on such short notice.

For example, Cherokee and Forsyth counties' voting locations cannot be adequately staffed on November 26. *See* **Ex. C** at Exs. A-B (Dover Affidavit ¶¶ 10-11, 14; Natt Affidavit ¶¶ 10-11, 13). Poll workers are in short supply, and election boards are occupied with the statewide audit, absentee ballot and vote-by-mail requests, logic and accuracy testing for voting machines, and delivering and setting up those machines. *Id.* (Dover Affidavit ¶¶ 5-7, 11-13; Natt Affidavit ¶¶ 5-7, 11-12). The superior court entered its order only eight days before November 26, two of which are legal holidays, leaving little time to prepare for advance voting.

Essentially, by not granting the motion for an emergency stay, the court of appeals has allowed the superior court to award ten counties an extra day of voting that most other Georgians will lack. That harm (and the disparate impact on voters) far outweighs potential harm to Plaintiffs. *Cf. Gwinnett Cnty. NAACP*, 446 F.Supp.3d at 1126. The injunction sows confusion and inequity into the voting process, preventing the clarity and uniformity that Georgia's citizens deserve.

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II. This case presents important issues worthy of certiorari.

As described above, this case presents fundamental issues that are just the sort that the Georgia Constitution contemplates this Court will "review by certiorari," namely, "cases in the Court of Appeals which are of gravity or great public importance." Ga. Const., art. VI, § VI, ¶ V. Likewise, the Court's rule on certiorari explains that "review on certiorari is not a right." Ga. S.Ct. R. 40. Instead, a "petition

for the writ will be granted only in cases of great concern, gravity, or importance to the public." *Id.* As such, the Court grants certiorari not on evidentiary matters or to correct errors, but on "important" cases. *See generally Atl. Coca-Cola Bottling Co. v. Jones*, 236 Ga. 448, 452–55 (1976) (Hall, J., dissenting).

The court of appeals' order denying Intervenors' emergency motion for stay erroneously keeps the status quo of the superior court's interpretation and overturns the Secretary of State's interpretation of Georgia election law in a highly contested election. This is of great concern and importance to the public, especially given the practical effects of the trial court's order—creating an unequal system where some counties will vote on November 26 and others will not. Administering the election pursuant to Georgia law is a matter of great concern, gravity, and importance to the public, and worthy of this Court's intervention.[10]

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Conclusion

The court of appeals' denial of the Intervenor's motion for emergency stay allows the superior court's interpretation of O.C.G.A. § 21-2-385(d)(1) to gut the statute, sow utter chaos, and unevenly impact Georgia voters' access to advance voting. This Court should grant a writ of certiorari to decide the merits of the court

[10] Because this case has been fully briefed below and since time is of the essence, this Court can dispose of the superior court's order summarily without further briefing or oral argument. *See Mobuary v. State*, 312 Ga. 337, 337 n.1 (2021).

of appeals' erroneous order, permitting final resolution **before advance voting occurs on Saturday, November 26th** in defiance of Georgia's election laws as written. For the same reasons that the court of appeals erred in denying the stay, Intervenors request that this Court stay the superior court's order pending disposition of this petition.

A copy of the Court of Appeals' order and Intervenors' notice of appeal are attached as **Exhibits G** and **H**. For the Court's reference, the notice of appeal to the Fulton County Superior Court is attached as **Exhibit I**.

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DATED: November 22, 2022 Respectfully submitted,

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CERTIFICATE OF SERVICE

I, Mark D. Johnson, do hereby certify that on the 22nd day of November, 2022, a true and correct copy of the foregoing **Georgia Republican Party, Inc., National Republican Senatorial Committee and Republican National Committee's Emergency Petition for Writ of Certiorari Requesting Stay of the Superior Court's Declaratory and Injunctive Relief** was served via electronic mail addressed to:

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I certify that there is a prior agreement with Plaintiffs and the State to allow documents in a PDF format sent via email to suffice for service.

This 22nd day of November, 2022.

/s/ Mark D. Johnson
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